

Maharashtra (civil areas) tree protection and conservation
(Amendment) Act, 2021.

Maharashtra government

Department of Environment and Environmental Change

Government circular number: tree a 2021/ pr.kr.19/ tan.k.4

Huttama Rajguru Square, Madam Cama Road,

Ministry, Mumbai 400 032

Date: August 06, 2021

Read: Maharashtra

Government Gazette of Haryana, Extraordinary Part Four, dated 16th July, 2021 Popular Maharashtra
(Civil Areas) Protection and Conservation of Trees (Amendment) Act, 2021 (Act of 2021).

No. 9)

Circulars:

Maharashtra (civil areas) trees to protect and preserve trees in the urban areas of the state

The Protection and Conservation Act, 1975 (hereinafter referred to as the Main Act)

To further amend this main Act, Maharashtra (civil areas) tree conservation

and Conservation (Amendment) Act, 2021 (Maharashtra Act No. 9 of 2021), hereinafter amended

Government Gazette of Maharashtra, Extraordinary Part 4 dated 16th July,

In 2021, the Government of Maharashtra (Maharashtra Government) has announced the publication of the
Government Gazette in Marathi and English.

The next right one is connected to that action.

2

Maharashtra (Civil Areas) Trees Protection and Conservation Act, 1975 of 16th July, 2021

The major provisions made by the Government of Maharashtra Gazette and related articles are as follows:-

(1) Ancient (heritage) tree:

Section 2 of the Main Act defines various terms under the amended Act.

It includes a new volume (1-a) and the term "Old Heritage Tree", which is the name given to the tree's natural
heritage.

Provision has been made to notify the definition by the Government.

GRC Fel, the Tal HAE of any species, with an estimated number of Yo

A character or more. FATT (Heritage FEAT)

The procedure for PPT at Chasan level is YR.

(2) The age of the trees:

In Article 2 of the Main Act, the newly incorporated clause (1-A) of the Amended Act,

In Section 8 of the Act, Section 3 of the Amended Act, the newly incorporated

Government circular number: tree a 2021/ pr.kr.19/ tan.k.4

In clauses (a) (two) (six) and (b) (5), the newly incorporated clauses under the amended Act

(b) To provide for the establishment by the Government of criteria and methods for determining the age of trees in accordance with

It's here.

In addition, TAN FIAT (AWS Act for the granting of heritage status)

Methods and approaches for determining the FEA number and the age of the deductible FEA

The action to make PAA at hourly level is YO.

(3) Compensation planting:

In Article 8 of the Main Act,

Under the Amendment Act, Section 5 is renumbered as Clause (a).

It has been repaired.

Plant as many trees as the estimated age of trees to be cut down.

When planting, at least 6 feet tall seedlings should be planted.

(i) Under the amended Act, Section 5 (a) and its provisions have been substantially amended.

© Trees planted in this way will need to be maintained for seven years.

If a tree does not survive during this period, the same number of trees can be planted to compensate for the damage.

We have to.

If it is not possible to plant trees as compensation, the trees that are being cut down should be removed.

Applicants can collect so much money if they don't earn less than the ratings.

It will be based on the methodology to be notified by the Government.

Gerd's methodology for scoring is based on the SOTA hourly rate.

The action of Fria is Ae.

Page 2 of 7

(4) Cutting down large trees:

In section 8 of the Main Act, abdominal section (3) clause (A-1) is replaced by amended Act.

The header has been repaired by filing.

© Maharashtra State Proposal to cut down over 200 trees aged five years or more

The tree will be sent to the authorities.

7 The Local Tree Authority shall ensure that the number of trees is within the specified limits.

Projects will not be subdivided into smaller sections.

In section 8 of the Main Act, amendments under section 5 (b) (d) of the Amended Act

It has been done.

Although the Maharashtra State Tree Authority has issued a recommendation to cut down trees, the local trees are being cut down.

Authority, request the Maharashtra State Tree Authority to reconsider its decision

They can.

(4) Maharashtra State Tree Authority:

“

(a) establishment:

In section 3 of the Main Act, by adding a new section (A-1) under the amended Act.

Officials who are not below the rank of Secretary to the Government at the State level

The Maharashtra State Tree Authority has been reduced.

OPA, MPT dismissed from the sixth level by Maharashtra State Gar Authority

The course of action is YO. (b) Duties:

Prior to Section 7 of Chapter 4 of the Main Act, the amended Act introduced the following new provisions:

The duties of the Maharashtra State Trees Authority are set out in Article 6A:

(a) Water control of the regulatory documentation;

(To protect and preserve heritage crops in Ayo State;

Governance Circular No: Tree A 2021/ pr.kr.19/ tan.k.4 (Determination of the age of three or more trees in relation to the demolition of the tree (AR) FRAT (ECCT) Act as specified by the Fer Authority in respect of the decommissioning of the trees (Article 2 of the Act as amended by section 3 of the Main Act) (Decision of the Authority on the application to be made to them) (doing of any other work related to the conservation and conservation POI of the five trees.

They will ensure that trees are counted every five years.

© Classification, calculation and conservation as heritage trees.

Planting and conservation of native species.

Ensure the survival of all land plants within the scope of the Urban Local Authority.

Ensure that the planting is carried out on land owned by the Municipal Local Authority or Government. The planting will be carried out in a scientific manner, for the protection of local species and for the purpose of at least 33% of the area under planting.

Page 4 out of 7

Government circular number: tree a 2021/ pr.kr.19/ tan.k.4

Pruning is done in a scientific manner and under the guidance of experts.

Confirming.

Ensure the cultivation and maintenance of damages.

Ensure the use of tree accessories for tree conservation.

Carrying out other duties/responsibilities appointed by Maharashtra State Tree Authority from time to time.

(9) Tree counting:

In section 7 of the Main Act, the provisions amended by the Amended Act are as follows:

Provision has been made.

The tree should be counted at least once every five years.

7 Promote the use of new technologies (515).

(8) Collective land for cultivation:

In section 7 of the Main Act, the provisions of the Amended Act are as follows.

7 Local Tree Authority to ensure land for planting purposes.

7 Planting should be done scientifically.

7 Promote the cultivation of native plant species to improve green spaces

यावे.

If no seats are available, compensation planting can be done on public land.

7 Some of the following planting methods can be adopted:

1) The planting of Miwaaki trees

2) Amrit Forest

3) Memory forest

4) Shahiriv

Page 5 out of 7

(9) Replanting of trees:

In section 7 of the Main Act, the new clause (s) filed under the amended Act

Provision has been made by the Government of India.

Replanting should only be done under the guidance of experts.

The estimated age of the tree to be replanted should be made as planting compensation.

(10) Alternative projects for tree conservation:

The provisions of Article 8 of the Main Act, Section 2 of the Patent Act, shall apply.

It has been done.

Alternative options for cutting down at least trees during the design of the project

Think about it.

(11) Tree tools:

In section 18 of the Main Act, section 3 and section 4 of the Amended Act are inserted.

The following provisions have been made.

© The Government will from time to time direct the allocation of tree supplies by the local authorities.

It will.

7 In view of the existing green coverage areas, to conserve and preserve trees,

The Government will instruct the Local Authority for allocation.

PUR, Jar subset allocation of various Frey to determine TT BRIT level

(12) Provisions of penalty:

In section 21 of the Main Act, by amending section (1) of the Amended Act.

Provisions are as follows.

The amount of the fine will be charged as notified from time to time.

The maximum amount of 7 subscribers will be limited to Rs 1 lakh per tree.

6 out of 7

Government circular number: tree a 2021/ pr.kr.19/ tan.k.4

The method of determining the YO of trees according to ANAT has been developed at the Jasan level.

3

Maharashtra (Urban Areas) Trees Protection and Conservation Act, 1975 has been amended from time to time.

Considering all the reforms, the provisions of the Act should be implemented immediately in all relevant civic local bodies.

It must be implemented.

8

The Sadhar Government Circular is available on the website of the Government of Maharashtra at www.maharashtra.gov.in.

This circular has been digitally signed under the code 202108061808066904.

It's being verified.

By order and name of the Governor of Maharashtra.

Ily signed by Manisha Patankar Mhaisk

Manisha Patankar ँ

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Date: 2021.08.06 18:18:25 +05'30'

(Manisha Patnakar-Meheskar)

Principal Secretary, Government of Maharashtra

the copy

1)

Minister, Environment and Environmental Change, Private Secretary, Ministry, Mumbai

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Minister of State, Environment and Environmental Change, Private Secretary, Ministry, Mumbai

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Departmental units (all)

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District Attorney (all)

4)

Ayukta, Municipality (all

&)

Regional Deputy Director, Municipal Branch, Departmental Youth Office (Svi)

7)

District Administration Officer, Municipal Branch, District Magistrate's Office (Servi)

8)

Chief Magistrate, Municipal Council / Municipal Panchayat (all)

8)

Department of Selection, Environment and Climate Change, Ministry, Mumbai.

Page 7 of 7

RNI No. MAHBIL /2009/35530

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Government Gazette of Maharashtra

Extraordinary Part Four

Year 7, issue 8]

Friday, July 16, 2021/Ashar 25th, 1943

[Page 6, price: Rs 23.00]

The extraordinary number 10

Authorized publication

Acts of the Maharashtra Legislative Assembly and Ordinance and Regulations enacted by the Governor.

Indexing

Maharashtra Act No. 9 of 2029 - Maharasha (Urban Areas) Tree Protection and Conservation Act, 1975

Pages

Act to further reform.

1-6

The next Act of the Maharashtra Legislature, approved by the Governor on 15th July 2021, is hereby published.

It's being done.

Satish tiger,

Secretary in charge (legislative assembly),

Government of Maharashtra,

FATA B Department of Justice.

Maharashtra Act No. 9 of the SNR.

(After the approval of Honourable Governor, in Government Gazette of Maharashtra dated 16th July 2021)

First published Act.)

Maharashtra (Urban Areas) Tree Protection and Conservation Act, 1975

Act to further improve it.

1975 चा

In other words, for the purposes of this initiative, the Maharashtra (civil areas) tree conservation is being undertaken.

It is desirable that further amendments be made to the Act, 1975;

This year, the next act is being enacted.

Part four-10-1

(1)

A short name.

The year 1975

Maharashtra

Act No.

Article 44

Improvement of 2.

The year 1975

Maharashtra

Act No.

Article 44

3 Fourth amendment.

The year 1975

Maharashtra

Act No.

44 of them are prophets.

Section 6a

Including.

Duties of Maharashtra State Tree Authority.

Government of Maharashtra Gazette Extraordinary part four, July 16, 2021/Ashadh, 25th, 1943

1, this Act, Maharashtra (Urban Areas) Tree Conservation (Amendment) Act, 2021,

Let's put it this way.

2. Maharashtra (Urban Areas) Tree Protection and Conservation Act, 1975 (hereinafter referred to as,

In section 2 of the Main Act,

(1) Volume (9-A) shall be renumbered as Volume (1-K);

(2) Before the newly numbered volume (1-KK), to include the following volume:

It will come:--

(1-a) Ancient (Heritage) Trees Meaning, notified by the Government

According to these standards, a tree classified as such by the authorities is a tree.

3. In Article 3 of the Main Act,

(1) The following stomach column shall be inserted before column (2):--

(a-1) As soon as possible after the enactment of Maharashtra (Civil Areas) Trees Protection and Conservation (Amendment) Act, 2021, the State Government shall abolish the State Trees Authority, by means of a notification in the Gazette, consisting of officers who shall not be below the rank of Secretary to the Government.

(2) The Municipality of the Pot-Article (2), of the Taktya, of the Registry 2, of the Column (2)

The words 'President' shall be replaced by 'Chief Municipal Officer'.

(3) Under sub-clause (3), who have special knowledge and practical experience in the field of planting and conservation of trees, representatives of NGOs shall be notified from time to time by the Government of the Minimum Period, including retired government officials from NGOs with experience in planting (planting), conservation and preservation.

4. Include the following section before section 7 of Chapter Four of the Main Act:

It will come:--

ea. The Maharashtra State Tree Authority, subject to any special Kimba general directives issued by the State Government, shall be responsible for:--

(a) To supervise the functioning of the Trees Authority;

(b) To promote conservation of heritage trees throughout the State;

(iii) To decide on the applications referred to it by the Tree Authority in respect of the removal of more than two hundred trees older than five years of age;

(Four) To decide on the application referred to them by the Trees Authority in relation to the removal of old (heritage) trees;

1975 चा

महा. 44.

सन 2021

Big nine.

(Fifth) To do any other work related to enhancing tree protection".

5. In section 7 of the Main Act,

Maharashtra

(1) In clause (b), once every five years after this work, Geographical Information Systems Act No.

(GIS-based tree calculation KINBA Any other modern technology such as new technology gacho improvement tools will be added to the text

(2) Subsection (i) Instead, the following subsections shall be inserted:-

- (i) Planting trees of the same genus and any other native genus under the supervision of a planting expert;
- (j) To ensure that compensatory trees are planted in Serbian lands under the jurisdiction of the Civil Local Authority and that all trees, including compensatory tree planting, survive;
- (k) To ensure the allocation of tree supplies for the conservation of trees;
- (l) To carry out any other activities designated by the Maharashtra State Tree Authority from time to time;
- (m) Deciding which trees should be classified as heritage trees and promoting heritage plants;
- (n) To ensure that land owned by the Civilian Local Authority is reserved for planting purposes by the land owner of the Kimba Government, and that such planting shall be carried out scientifically and for the purpose of conserving local species and growing in green cover areas to a maximum of not less than 33 percent;
- (o) To ensure the scientific clearance and maintenance of trees each year, under the guidance of experts;
- (e) To ensure that for each tree that falls naturally, compensatory trees are planted by the Civil Local Authority;
- (Q) To take any other measures to achieve the objectives of this Act.

6. In section 8 of the Main Act, - Maharashtra Act No.

Ud, where a large number of trees has been proposed to be planted, for the relevant AD section resolution image, the concept c with the number S shall be retained.

(1) In the stomach-column (2), the following item shall be added:--

Part four-10-2

(2) In the stomach-column (3),

(a) in clause (a),

(a) The following text shall be deleted from sub-section (three):

After (two) sub-volumes (four), the following sub-Volumes will be added:--

If the heritage tree is to be demolished, as specified in the advertisement,

This shall be stated; and

(six) in accordance with the criteria and procedures to be notified by the Government.

Determining the yield of the Padabia tree.

(b) After volume (a-1), the following items will be added:--

aig, when more than 200 trees were planted for more than five years.

When proposed, in such cases, the tree authority, the head case, with its report and

The Maharashtra State Trees Authority shall specify with recommendations:

But what's more, when the proposed demolition is an ancient heritage tree.

When, in such cases, the tree authority, the kinba status, the trees officer, the head case,

With its report and recommendations B, Maharashtra State Trees Authority shall specify:

But also, the tree authority, the Kimba situation, tree officials, the trees of Padabia.

Any other project, small-scale, such as a geodevelopment project,

ensure that it is not subdivided into parts.

(3) In the stomach-column (4), the following paragraph shall be added:--

UG, the provisions of this Article shall apply to heritage trees.

No.;

(4) the stomach column (5) deep,--

(a) Subpart (5) shall be renumbered as Volume (a);

(b) Thus, in the newly numbered volume (a) Applicant has twice the number of trees in the tree.

Instead of the text "planting trees", the projected FAST of trees to be cut down.

The number of trees you can plant and plant is at least six feet tall.

And it shall be written in the height thereof:

(a) In this way, after the given volume (a), the next volume is added.

It will come.

(b) Officials, as notified by the Government, and

The tree which shall be cut down according to the manner shall be determined by the bee.

(5) After the stomach-column (5), the following stomach -columns shall be added:-

(5a) The applicant and the Tree Authority will ensure that the Kinba Tree Officer is compensated.

Trees will be planted and the planted trees will live for a minimum period of seven years.

If the trees do not survive during this period, the same number of trees can be harvested and damaged.

They will also ensure that it will be paid:

However, if the applicant is unable to plant the compensation tree, the applicants must pay the costs of planting the fallen trees.

It will be notified by the Government that it will collect no less than the values.

It will be based on the following method:

Government of Maharashtra Gazette Extraordinary part four, July 16, 2021/Ashadh, 25th, 1943

But other than that, the money collected is used only to pay for the planting of trees,

Instead of saving it and planting trees that didn't survive during this period,

It will be done for the purpose of doing.

(5b) (a) Tree Authority, more than 200 trees of more than five years of age

The application received for demolition will be referred to the Maharashtra State Tree Authority.

(b) Tree authority, or as the case may be, tree officer, heritage tree disposal application

Maharashtra State shall refer to the Tree Authority.

(a) Maharashtra State Tree Authority, Tree Authority Kimba, as the case may be, Tree Officer

(a) and (b) a specified application to them from the tree authority or tree officer

Within 45 days from the date of receipt of the reference, without any condition of Kimba, including Centenary,

Either he accepts or he can refuse.

(d) When the Maharashtra State Tree Authority allows the planting of trees, the State of Maharashtra

If the decision of the Tree Authority is deemed necessary to be reviewed,

The decision shall be reviewed within 15 days from the date of notification of the decision.

He can request the Maharashtra State Trees Authority with reasons.

The decision will be taken within 10 days by the State Tree Authority.

(Gh) Planting trees in place of those permitted to be planted under the stomach-column (5)

Geographical mapping of tree prophets using the latest available technology

(Geo-Tagging) B will be controlled.

7. In section 18 of the Main Act, after the stomach-clause (2), the following stomach -clause is added.

The year 1975

Maharashtra

These may be:--

Act No.

(3) Appropriation of tree supplies collected under the provisions of this section, administration from time to time

Article 44

The 18th amendment.

In such a way as to give instructions, it will be done by the local authority.

(4) State governments, taking into account existing green coverage areas and tree conservation

By identifying the needs of the sector for conservation, various civil and local authorities,

Various criteria for allocation can be specified.

8,

The year 1975

In sub-section (1) of Section 21 of the Main Act, shall not be less than Rs.

Maharashtra

Act No.

Instead of this text, up to Rs 5,000 will be notified by the government.

Article 44, using this method, is equivalent to the value of the drawn tree but not more than Rs 1 lakh

Amendment 21. The text of sum will be entered.

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Exceptional number 28

Authorized publication

Act of the Legislative Assembly of Maharashtra a decree and regulations promulgated by the Governor and bills from the Department of Fafa and Justice (English translation),

In pursuance of clause (3) of article 348 of the Constitution of India,

the following translation in English of the Maharashtra (Urban Areas)

Protection and Preservation of Trees (Amendment) Act, 2021 (Maharashtra

Act No. IX of 2021), is hereby published under the authority of the Governor.

MAHARASHTRA ACT No. IX OF 2021. (First published, after having received the assent of the Governor in the Maharashtra Government Gazette, on the 16th July 2021.) An Act further to amend the Maharashtra (Urban Areas) Protection and Preservation of Trees Act, Mah. 1975.

1

Short title.

This Act may be called the Maharashtra (Urban Areas) Protection and Preservation of Trees (Amendment) Act, 2021.

Amendment of

2.

In section 2 of the Maharashtra (Urban Areas) Protection and Mah.

XLIV of

section 2 of Preservation of Trees Act, 1975 (hereinafter referred to as “the principal

Mah. XLIV of

Act”),—

1975.

1975.

(1) clause (Ja) shall be re-numbered as clause (Jaa) ;

(2) before clause (Jaa) as so re-numbered, the following clause shall be inserted, namely:—

“(1a) “heritage tree” means a tree categorised as such by the Tree Authority, in accordance with the norms as may be notified by the Government;”.

Amendment of

3

section 3 of

In section 3 of the principal Act,—

Mah. XLIV of

1975.

(1) before sub-section (1), the following sub-section shall be inserted, namely :—

“(A-1) As soon as may be, after the commencement of the Maharashtra (Urban Areas) Protection and Preservation of Trees

Mah. [x

(Amendment) Act, 2021, the State Government shall constitute the

of 2021.

Maharashtra State Tree Authority, by notification in the Official Gazette, consisting of officials not below the rank of Secretary to Government.”;

(2) in sub-section (2), in the table, in entry 2, in column (2), for the words “The President of the Council” the words “The Chief Officer of the Council” shall be substituted ;

(3) in sub-section (3), for the words “representatives of non-official organisations, who have special knowledge or practical experience in the field of planting and preservation of trees,” the words “experts from non-official organisations including retired Government Officials, with an experience in planting, preservation and conservation of trees, for minimum period as may be notified by the Government, from time to time,” shall be substituted.

Insertion of

4. In Chapter IV of the principal Act, before section 7, the following new section

section shall be inserted, namely :—

6A in Mah.

XLIV of 1975.

Duties of

Maharashtra

“6A. Notwithstanding anything contained in the relevant Act or in any other law for the time being in force, and subject to any special State Tree Authority.

or general directions given by the State Government, the Maharashtra State Tree Authority shall be responsible for,—

(ढ) monitoring the functioning of the Tree Authority ;

(iz) protection and conservation of heritage trees across the State ;

(iii) decide applications referred to it by the Tree Authority, regarding felling of more than two hundred trees of age five years

or more

(iv) decide applications referred to it by the Tree Authority, regarding felling of heritage trees ;

(v) any other functions related to protection and conservation of trees.”.

5. In section 7 of the principal Act,—

(1) in clause (6), after the words “every five years” the words “by using new technological means such as GIS based tree census or any other modern technology” shall be added ;

(2) for clause (i), the following clauses shall be substituted,

namely :—

“(i) planting number of trees of the same variety or any other local or native variety, in such number equal to the age of the tree being transplanted and carry out such transplantation under the

expert guidance only ;

(j) ensuring that compensatory plantation is carried out and survival of trees, including the compensatory plantation, in all lands

within the jurisdiction of the urban local authority ;

(k) ensuring utilisation of tree cess for conservation and

preservation of trees ;

(ढ) carrying out any other activity as assigned by the Maharashtra State Tree Authority, from time to time;

(m) deciding which tree is to be categorised as heritage tree,

and enumerate heritage trees;

(n) ensuring that the land owned by the urban local authority or land owned by the Government is earmarked for the purpose of plantations and ensure such plantations shall be scientific in nature and should be carried out with an objective to preserve local species and improve green cover of the area, to the extent of not less than 33 per cent. ;

(o) ensuring pruning and maintenance of trees is carried out

in a scientific manner under expert guidance, every year ;

(p) ensuring that the compensatory plantation for each of the naturally fallen tree is carried out by the urban local authority ;

(q) undertaking any other schemes or measures for achieving the objects of this Act.”.

Part eight -- Retu.

Amendment

of section 7 of

Mah. XLIV of

1975.

Amendment 6. In section 8 of the principal Act,—

of section 8 of

Mah. XLIV of (1) in sub-section (2), the following proviso shall be added,

1975. namely :—

“Provided that, where the significant number of trees are proposed to be felled, the alternate design alongwith the number of trees required to be felled for respective design shall be submitted alongwith the application.”;

(2) in sub-section (3),—

(a) in clause (a),—

(i) in sub-clause (ii), the word “and” shall be deleted ;

(ii) after sub-clause (iv), the following sub-clauses shall be added, namely :—

“ (v) specifically mention in the advertisement, if the tree to be felled is a heritage tree ; and

(vi) determine the age of the tree being felled as per the criteria and method as may be notified by the Government.”;

(5) after clause (a-1), the following provisos shall be added,

namely :—

“Provided that, where more than two hundred trees of age five years or more are proposed to be felled, in such cases, the Tree Authority shall refer the matter to the Maharashtra State Tree Authority with its report and recommendations:

Provided further that, where the tree proposed to be felled is a heritage tree, in such cases, the Tree Authority or Tree Officer, as the case may be, shall refer the matter to the Maharashtra State Tree Authority with its report and recommendations:

Provided also that, the Tree Authority or Tree Officer, as the case may be, shall ensure that the development of land or any other project is not sub-divided in smaller parts so as to keep the number of trees to be felled below two hundred.”;

(3) in sub-section (4), the following proviso shall be added,

namely :—

“Provided that, the provisions of this sub-section shall not be applicable in case of felling of a heritage tree.”;

(4) in sub-section (5),—

(a) sub-section (5) shall be re-numbered as _ clause (a);

(b) in clause (a), as so re-numbered, for the words “the applicant shall plant twice the number of trees to be felled” the words “applicant shall plant such number of trees equal to the estimated age of the tree being felled and such trees to be planted shall be of atleast six feet height,” shall be substituted;

(c) after clause (a), as so re-numbered, the following clause shall be added, namely :—

“(b) Tree Officer shall determine the age of the tree being felled as per the criteria and method as may be notified by the Government.”;

(5) after sub-section (5), the following sub-sections shall be inserted,

namely :—

“(5A) The applicant and the Tree Authority or Tree Officer shall ensure that, compensatory plantation shall be carried out and the trees planted shall survive for a minimum period of seven years. It shall also be ensured that, the tree mortality during this period shall be compensated by planting equal number of new trees:

Provided that, in case it is not possible for applicant to do the compensatory plantation, the applicant shall deposit an amount not less than valuation of trees being felled. Such valuation shall be based on methodology as may be notified by the Government:

Provided further that, such amount deposited shall be utilized only for the purpose of compensatory plantation, its preservation and compensatory plantation in lieu of the tree mortality during this period.

(5B) (a) The Tree Authority shall refer the application received for felling of more than two hundred trees of age five years or more to the Maharashtra State Tree Authority.

(b) The Tree Authority or Tree Officer, as the case may be, shall refer the application to fell a heritage tree to the Maharashtra State Tree Authority.

(c) The Maharashtra State Tree Authority shall either allow the application referred to it under clauses (a) and (b), by the Tree Authority or Tree Officer, as the case may be, with or without conditions or may refuse it within a period of forty-five days from the date of receipt of the reference from the Tree Authority or Tree Officer, as the case may be.

(d) Where the Maharashtra State Tree Authority allows felling of trees, the Tree Authority if considers it necessary to review the decision of the Maharashtra State Tree Authority, it may within a period of fifteen days from the date of communication of the

decision, request the Maharashtra State Tree Authority to reconsider the decision with reasons therefor. Such request shall be decided by the Maharashtra State Tree Authority within ten days thereafter.

(5C) New trees planted, in lieu of the permission to fell a tree granted under sub-section (5), shall be geo-tagged and monitored using latest technologies available.”.

7

In section 18 of the principal Act, after sub-section (2), the following Amendment of section 18

sub-section shall be added, namely :—

of Mah. XLIV

of 1975.

“(3) Tree cess collected under the provisions of this section shall be utilised by the urban local authority in such manner as may be directed by the Government, from time to time.

The State Government may, issue directions and determine different criteria for utilisation of cess, for different urban local authorities, considering the area of existing green cover and assessment of the need of the area for preservation and conservation of trees.. Amendment 8. In section 21 of the principal Act, in sub-section (7), for the words of section 21 not less than one thousand rupees which may extend up to five thousand of Mah.XLIVETA the words an amount of valuation of tree, using methodology as of 1975.

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